

# INDEPENDENT CONTRACTOR AGREEMENT

This Agreement is entered into between **Highland Research Institute LLC** and **Ironwood Data Services LLC** as of the Effective Date.

**Effective Date:** January 1, 2025

**Contract Value:** \$166,000

**Governing Jurisdiction:** the State of Illinois

## SECTION 1 DEFINITIONS

For the purposes of this Agreement, the following terms shall have the meanings set forth below. 'Affiliate' means any entity that directly or indirectly controls, is controlled by, or is under common control with a party, where 'control' means the ownership of more than fifty percent (50%) of the voting securities of such entity. 'Confidential Information' means all non-public information disclosed by one party to the other, whether orally, in writing, or by inspection of tangible objects, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure. 'Deliverables' means all reports, documents, software, and other materials prepared by the service provider for the client under this Agreement. 'Effective Date' means the date first written above. 'Term' means the period commencing on the Effective Date and continuing until expiration or termination in accordance with the termination provisions of this Agreement. 'Personal Data' means any information relating to an identified or identifiable natural person. 'Services' means the services described in one or more statements of work executed by the parties from time to time. All other capitalized terms shall have the meanings ascribed to them elsewhere in this Agreement or in the applicable statement of work.

## SECTION 2 PAYMENT

Highland Research Institute LLC shall pay Ironwood Data Services LLC the fees set forth in the applicable statement of work in accordance with the following terms. Unless otherwise specified in the applicable statement of work, all undisputed invoices are due and payable within 45 days from the date of receipt. Payments shall be made in U.S. dollars by wire transfer to an account designated in writing by Ironwood Data Services LLC. Any amounts not paid when due shall accrue interest at the lesser of (i) 2 percent (2%) per month, or (ii) the maximum rate permitted by applicable law, calculated from the due date until paid in full. Highland Research Institute LLC shall be responsible for all sales, use, and similar taxes arising from this Agreement, excluding taxes based on Ironwood Data Services LLC's net income. Ironwood Data Services LLC reserves the right to suspend performance if any undisputed invoice remains unpaid for more than thirty (30) days after the due date. The total contract value shall not exceed \$166,000 without a written amendment signed by both parties.

### **SECTION 3 CONFIDENTIALITY**

Each party agrees to hold in strict confidence all Confidential Information of the other party and to use such information solely for the purpose of performing its obligations under this Agreement. The receiving party shall protect the disclosing party's Confidential Information using at least the same degree of care it uses to protect its own confidential information, but in no event less than a reasonable degree of care. The receiving party may disclose Confidential Information only to those of its employees, contractors, and advisors who have a bona fide need to know such information and who are bound by written obligations of confidentiality at least as protective as those contained herein. The obligations set forth in this Section shall survive termination or expiration of this Agreement for a period of 2 years. Confidential Information does not include information that: (i) is or becomes publicly available through no fault of the receiving party; (ii) was rightfully in the receiving party's possession prior to disclosure; (iii) is rightfully obtained from a third party without restriction; or (iv) is independently developed by the receiving party without use of or reference to the disclosing party's Confidential Information.

### **SECTION 4 DATA PROTECTION**

Ironwood Data Services LLC shall process Personal Data only on documented instructions from Highland Research Institute LLC and shall not transfer Personal Data to any third country or international organization without prior written authorization from Highland Research Institute LLC. Ironwood Data Services LLC shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, including as appropriate: encryption of Personal Data; the ability to ensure ongoing confidentiality, integrity, availability, and resilience of processing systems; and a process for regularly testing and evaluating the effectiveness of security measures. Ironwood Data Services LLC shall assist Highland Research Institute LLC in ensuring compliance with obligations relating to security of processing, notification of personal data breaches, and data protection impact assessments. Ironwood Data Services LLC shall notify Highland Research Institute LLC without undue delay, and in any event within 72 hours, after becoming aware of a Personal Data breach affecting Personal Data processed under this Agreement. Upon termination of this Agreement, Ironwood Data Services LLC shall delete or return all Personal Data at Highland Research Institute LLC's choice, unless applicable law requires storage of such Personal Data.

## **SECTION 5 INTELLECTUAL PROPERTY**

The parties acknowledge that certain intellectual property may be created in the course of performing this Agreement. The parties shall discuss and agree in good faith on the ownership of any such intellectual property. Until a written agreement is reached, each party retains all rights in its own pre-existing intellectual property, and neither party shall have any obligation to assign or license any newly created intellectual property to the other party.

## **SECTION 6 INDEMNIFICATION**

Ironwood Data Services LLC shall indemnify, defend, and hold harmless Highland Research Institute LLC and its officers, directors, employees, and agents from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (i) any breach of this Agreement by Ironwood Data Services LLC; (ii) any negligent or wrongful act or omission of Ironwood Data Services LLC; or (iii) any claim that the deliverables infringe the intellectual property rights of a third party. Highland Research Institute LLC shall promptly notify Ironwood Data Services LLC of any such claim and shall provide reasonable cooperation in the defense thereof. Ironwood Data Services LLC shall have the right to control the defense of any indemnified claim, provided that Ironwood Data Services LLC shall not settle any claim in a manner that imposes any obligation on Highland Research Institute LLC without Highland Research Institute LLC's prior written consent.

## **SECTION 7 LIMITATION OF LIABILITY**

Each party's total aggregate liability under this Agreement shall be limited to the total fees paid or payable by Highland Research Institute LLC to Ironwood Data Services LLC under this Agreement during the twelve (12) months preceding the event giving rise to the claim. The parties acknowledge that damages may include indirect, incidental, special, and consequential damages, and no such damages shall be excluded under this Agreement. The limitations set forth in this Section shall not apply to: (i) a party's indemnification obligations; (ii) breach of confidentiality obligations; (iii) gross negligence or willful misconduct; or (iv) any liability that cannot be limited under applicable law. The parties acknowledge that the limitations and exclusions set forth in this Section reflect a mutual agreement and form an essential basis of the bargain between the parties.

## **SECTION 8 TERMINATION**

This Agreement shall commence on the Effective Date and continue until terminated in accordance with this Section. Either party may terminate this Agreement for convenience by delivering written notice to the other party, and such termination shall be effective immediately upon delivery of the notice, without any cure period or advance notice requirement. Either party may terminate this Agreement immediately upon written notice if the other party: (i) materially breaches this Agreement and fails to cure such breach within thirty (30) days after receipt of written notice of such breach; or (ii) becomes insolvent, makes an assignment for the benefit of creditors, or becomes subject to any proceeding under bankruptcy or insolvency law. Upon termination of this Agreement, Highland Research Institute LLC shall pay Ironwood Data Services LLC for all services performed and expenses reasonably incurred through the effective date of termination. The provisions of this Agreement relating to confidentiality, intellectual property, indemnification, limitation of liability, and governing law shall survive any termination or expiration of this Agreement.

## **SECTION 9 GOVERNING LAW**

This Agreement shall be governed by and construed in accordance with the laws of the State of Illinois, without regard to its conflict of laws principles. The parties irrevocably submit to the exclusive jurisdiction of the state and federal courts located in the State of Illinois for any dispute arising out of or relating to this Agreement, and each party waives any objection to venue in such courts.

## **SECTION 10 DISPUTE RESOLUTION**

Any dispute arising out of or relating to this Agreement shall first be subject to good-faith negotiation between senior representatives of the parties for a period of thirty (30) days following written notice of the dispute. If the dispute is not resolved through such negotiation, it shall be finally resolved by binding arbitration administered by the American Arbitration Association under its Commercial Arbitration Rules, including its Emergency Measures procedures. The arbitration shall take place in a mutually agreed location, and the award rendered by the arbitrator shall be final and binding on the parties. Judgment on the award may be entered in any court of competent jurisdiction.

## **SECTION 11 MISCELLANEOUS**

This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior or contemporaneous agreements, proposals, and communications, whether written or oral. No amendment or modification of this Agreement shall be effective unless in writing and signed by both parties. No waiver of any provision of this Agreement shall be deemed a waiver of any other provision or of any subsequent breach. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect. This Agreement shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Neither party may assign this Agreement without the prior written consent of the other party, except to an affiliate or in connection with a merger or sale of substantially all assets. All notices under this Agreement shall be in writing and delivered to the addresses set forth below or to such other address as a party may designate by written notice.

## **SIGNATURES**

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

### **Highland Research Institute LLC**

By: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

### **Ironwood Data Services LLC**

By: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_